

Court No. - 40

Case :- WRIT - C No. - 21259 of 2023

Petitioner :- Archana Kesarwani

Respondent :- Purvanchal Vidhut Vitrana Nigam Ltd. And
Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard learned counsel for the petitioner, Shri Narendra Kumar Tiwari, learned counsel for Purvanchal Vidyut Vitran Nigam.
2. Grievance of the petitioner is that respondent no.2 has not processed the petitioner application under Clause 6.5(b)(ii) of the U.P. Electricity Supply Code 2005 as per actual consumption of meter (after the period from 21.05.2021) and for previous period (prior to 21.05.2021) on the basis of average consumption pattern of meter as per provision Clause 5.6(c)(ii) and 5.7(d) of U.P. Electricity Supply Code 2005.
3. At the very outset, Shri Narendra Kumar Tiwari, learned counsel for respondent-Corporation states that in case petitioner is entitled for waiver of surcharge as per the aforesaid provision, definitely the same would be processed as per law.
4. Considering the facts and circumstances of the case, no useful purpose would be served in keeping the writ petition pending consideration. The writ petition, on consent, is ***disposed of*** asking the petitioner to approach the Execution Engineer-second respondent by moving a fresh representation/application ventilating all his grievance. In case any such representation/application is moved by the petitioner within a week, we hope and trust that the said representation would be considered and decided by the competent authority expeditiously, preferably within two weeks. Suffice to indicate that the Court has not adverted on the merits of the case.

Order Date :- 6.7.2023

A. Pandey